



Health Claims Forum
Working together for success

A claims approach to identifying possible fraud.

12 September 2023



Health Claims Forum

Working together for success

Welcome

Jen Oakey – Chair HCF



Agenda

- **Observations, trends and learnings from General Insurance**
 - David Clements, Claims Fraud Operations Manager, Zurich UK
- **Investigating suspicions or unusual activity**
 - Clayton Holloway, Deputy Claims Manager, Unum.
- **Fraud Investigation, insights, challenges and case examples**
 - Jamie Lankey, Technical Service Director & Sarah Glenn, Commercial Director, RGI Solutions.

Break

- **Legal considerations, how best to collaborate with potentially interested parties when fraud is suspected**
 - Helen Tilley, partner at Carter Perry Bailey LLP
- **The role of Insurance Fraud Enforcement Department (IFED) and how they work with the insurance industry**
 - Tom Hill, Detective, Chief Inspector and Head of Unit for IFED, The City of London Police
- **Panel Discussion**
- **Wrap up & close**
- **Drinks – Slug and Lettuce – Across the Road**



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Observations, trends and learnings from General Insurance

David Clements - Claims Fraud Operations Manager - Zurich UK

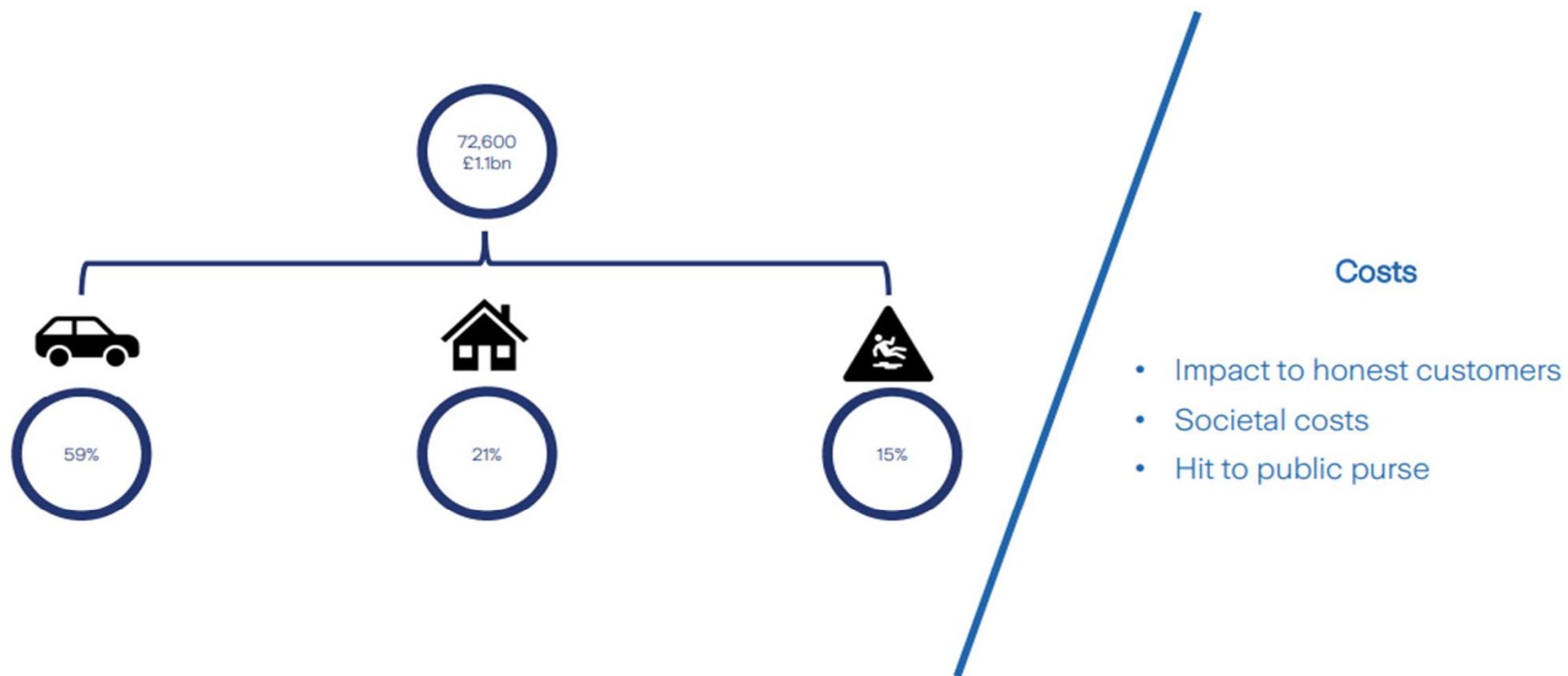
General Insurance Fraud

Health Claims Forum

David Clements
Claims Fraud Operations Manager Zurich



The GI Fraud Risk





Motor Fraud





Casualty Fraud





Property Fraud



Market Factors



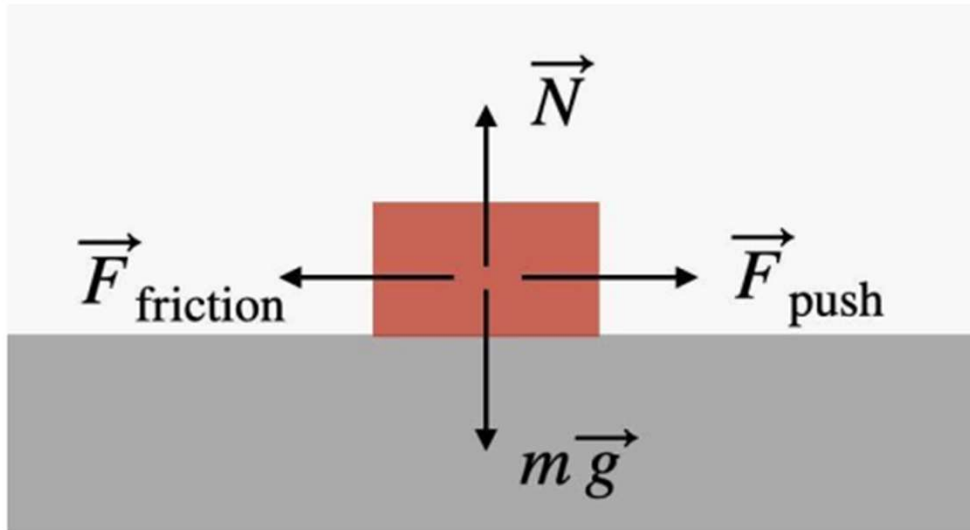
Regulation 2(1)(a) is whiplash only and 2(1)(b) is whiplash + minor psychological injury

Duration of injury	Amount Regulation 2(1)(a)	Amount Regulation 2(1)(b)
Not more than 3 months	£240	£260
More than 3 months, but not more than 6 months	£495	£520
More than 6 months, but not more than 9 months	£840	£895
More than 9 months, but not more than 12 months	£1,320	£1,390
More than 12 months, but not more than 15 months	£2,040	£2,125
More than 15 months, but not more than 18 months	£3,005	£3,100
More than 18 months, but not more than 24 months	£4,215	£4,345



Shared Challenges

A More Autonomous Claims Lifecycle



- Traditionally perceived friction between two competing priorities – maximizing fraud detection AND delivering a smooth customer journey
- Moves towards straight through processing present both a challenge and opportunity for fraud teams
- Both ambitions can be balanced using technology

GI Counter Fraud Strategy

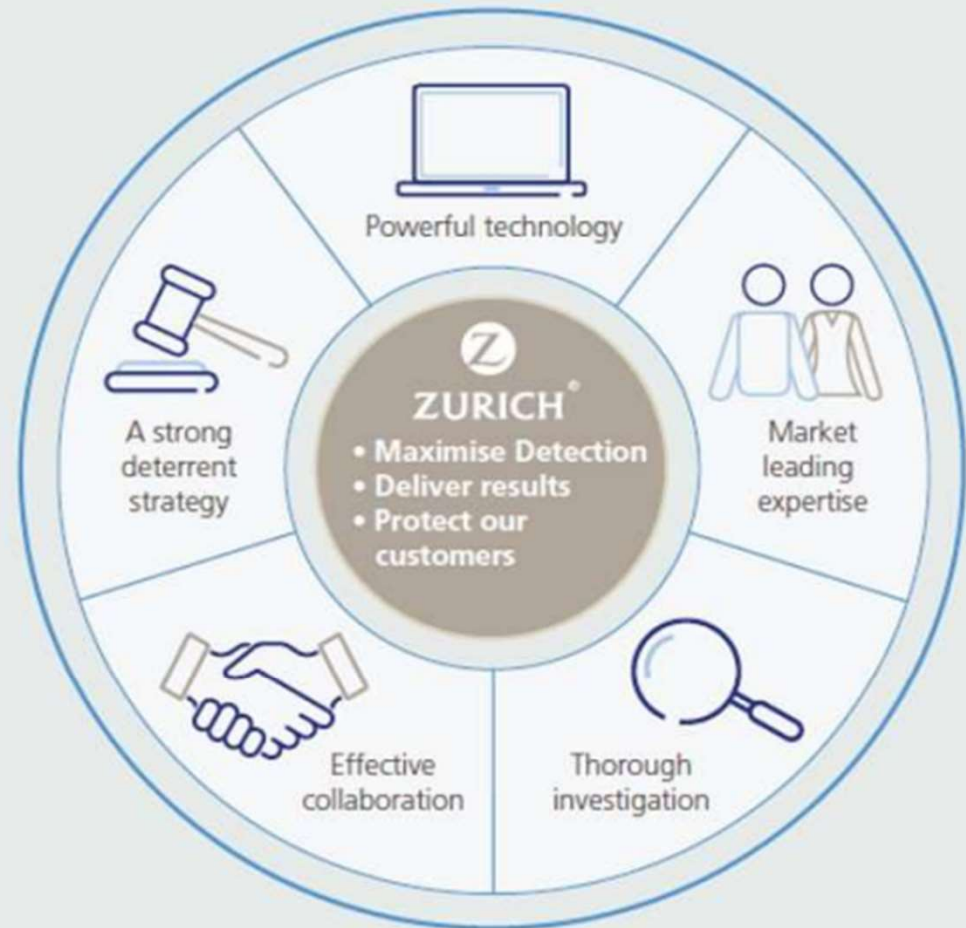


At Zurich we put the customer at the heart of what we do and that's no different when it comes to fighting fraud.

Our commitment is to:

- Maximise the detection of fraud
- Deliver the very best result on each fraud investigation
- Protect our customers from risk

That's why we are investing in 5 key areas



Reasons to be Optimistic



Thank you

Any Questions?





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Investigating suspicions or unusual activity

Clayton Holloway - Deputy Claims Manager - Unum Ltd

Investigating suspicions or unusual activity

Clayton Holloway, Deputy Claims
Manager, Unum Ltd



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Suspicious claim indicators

Deliberate non-disclosure (alternative working)

Being unable to confirm the legitimacy of evidence

Difficulty contacting the employee, and/or lack of response

Exaggerated symptom reporting & inconsistencies

Subjective claims with limited pathology and/or no credibility

Multiple similar claims under one policy (same location/condition)

Deliberate falsification of information

Third-party tip-off

Considering PI – ABI guidance

The use of PIs for surveillance, by its very nature, is likely to be an intrusion into that individual's privacy. So a PI should only be employed where there is reasonable suspicion that the claim might be fraudulent or there are reasonable grounds for requiring validation of a claim and the information they can obtain using surveillance is deemed appropriate and necessary under the circumstances.

The purpose of surveillance, as recognised by the courts, is to obtain independent, objective evidence in order to prove, disprove or validate a claim. There might be circumstances where the use of a PI might not be an appropriate or the best way of confirming the validity of a claim, for example, because an individual is alleging an illness that could not be verified through surveillance of that individual.

What to do before PI?

Obtain an up-to-date claim form, declaration of incapacity, or Activity of Daily Living Questionnaire

To ensure we have signed confirmation of true & complete information being provided

We must understand current functional ability

We may need to seek a questionnaire, undertake a call with the employee, and/or gain up-to-date medical information for a full clinical and functional update

We must understand the occupational requirements

Functional information is only relevant if it is comparable to the insured occupation

What investigations have previously been undertaken?

What was the outcome and why do we feel further investigation is warranted? What is the aim of the request?

Desktop research

Desktop surveillance is the monitoring of a person's social media account(s)

Results:

Satisfactory evidence
confirming claim
suspicions

Decline/cease

Validation of reported
restrictions and
limitations

Accept/continue

Inconclusive
information

Additional
Investigations

Implications:

Account lockdown

Not using the information obtained
in the context it originated

Thank you

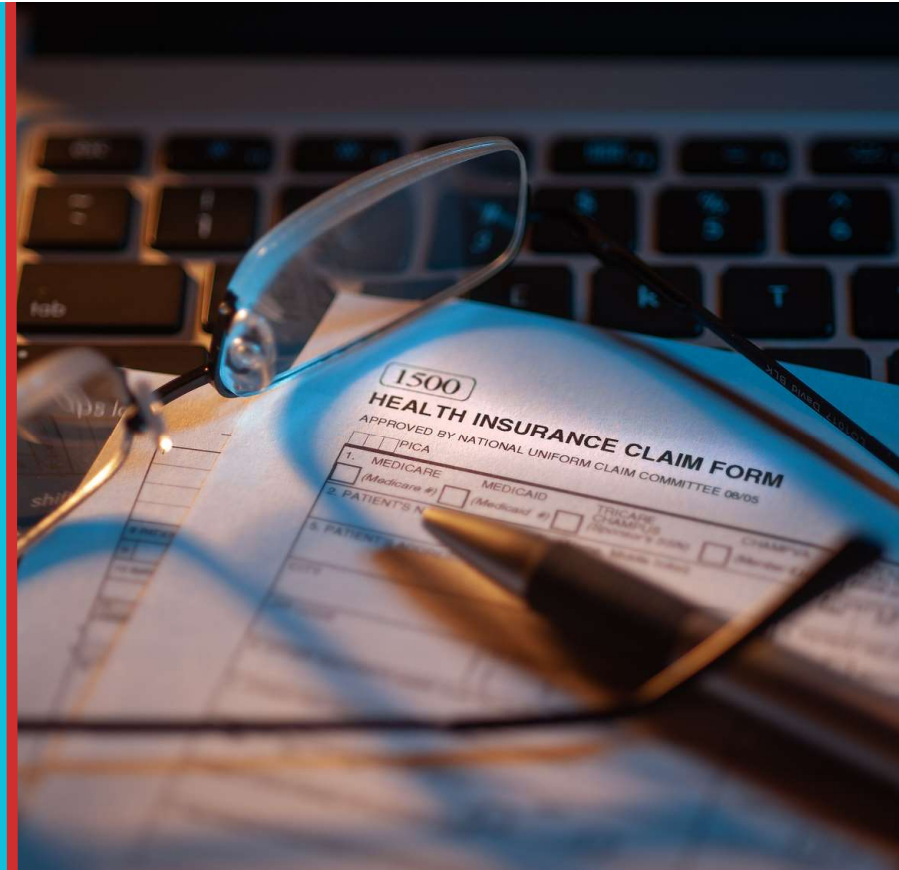


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Investigating Fraud Claims in HCF: An Overview

Jamie Lankey - Technical Service Director
Sarah Glenn - Commercial Director
RGI Solutions.

Investigating Fraud Claims in HCF: An Overview



**Presented by Jamie Lankey &
Sarah Glenn**



Introduction to fraud claims

Welcome to the presentation on the experiences of investigations for fraud claims at HCF.

We will explore challenges faced during investigations, desk-based research tips and successes, and UK claims that required investigation abroad.

Overview of Fraud Investigations

Fraud investigations are crucial to protect the integrity of insurance systems and ensure fair treatment for genuine claimants.

Investigations may involve suspected or proven fraud claims, which could be high frequency and low value, such as fracture cover claims.



Challenges on High-Frequency/Low-Value Claims

High-frequency/low-value claims, like fracture cover claims, can be challenging due to their sheer volume.

Limited resources may lead to difficulties in investigating each claim thoroughly.

Fraudsters may exploit the system by submitting numerous small claims, making detection harder.





Strategies to Address High-Frequency/Low-Value Claims

Implement automated fraud detection systems to flag suspicious patterns.

Prioritise claims with higher risk indicators for in-depth investigation.

Use data analytics to identify trends and anomalies in claim patterns.



Desk-Based Research Tips and Successes



Tips for conducting desk-based research

- a. Validate claimant information against various databases.
- b. Look for inconsistencies in the claimant's history or activities.
- c. Verify medical records and assess the severity of injuries.



Success stories of desk-based research

- a. Uncovering false identities by cross-referencing databases.
- b. Identifying multiple claims from the same person under different names.



Case Study - Investigation Out of the Country

Some fraud claims may involve individuals or events outside the UK.

Insurance fraud related to travel claims abroad.

Challenges: Jurisdictional complexities, language barriers, and cultural differences

Strategies: Collaborate with international partners, use local investigators, and leverage technology for communication.

Key Learnings

Fraud investigations require a combination of traditional and modern techniques.

Data analytics, AI, and collaboration play a significant role in detecting fraud.

Continuous training of investigators to stay updated with evolving fraud tactics.





Preventive Measures

Early detection is key: Implement robust fraud detection systems.

Raise awareness among staff and policyholders about the consequences of insurance fraud.

Encourage reporting of suspicious activities.





Conclusion and future steps

Fraud investigations are vital for safeguarding the insurance industry's integrity.

Embrace technology and collaborative efforts to improve investigation outcomes.

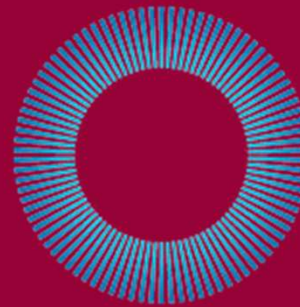
Together, we can combat fraud and protect genuine policyholders.



Thank you for listening to our presentation on fraud investigations in HCF.

Stay vigilant against fraudulent activities!

Any questions from the floor?



RGI
SOLUTIONS

Break Time





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Legal considerations, how best to collaborate with potentially interested parties when fraud is suspected

Helen Tilley - Partner - Carter Perry Bailey



Health Claims Forum

A claims approach to identifying possible Fraud

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12 September 2023



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Today's Objectives

Look at how can we reduce the recent trend of multi-insurer fraud

- including collaboration through compliant data sharing

Practical tips on preparing cases to present to legal authorities (IFED/ Police, FOS, Civil Court)

- including building an effective team and strategy



Issues & trends

PAST	PRESENT	FUTURE
“ABI Circular” seemed to work & less perceived data protection ‘barriers’ to data sharing	RAD form 1 & 2 but life/protection industry sometimes over-cautious about data sharing	Greater sophistication (through use of AI and multiple layers to the fraud)
Applications included question - how much cover will there be overall, any current applications and whether any existing cover will be cancelled?	Increase in multi-insurer frauds (up to £500k each to contain underwriting) & less use of overall cover question in application	Cost of living crisis – external risks (customers/ beneficiaries/ professional enablers) & Internal risks (employee/ third party provider fraud)
Protection Register (in noughties)	Issues arising from Coroner and insurer using same standard of proof (‘balance of probabilities’), Coroner deciding the remit & use of evidence by police in Coroner’s Inquest & Criminal trials generally	Greater ease of electronic “doctoring” of documents

Possible drivers for increase in multi-insurer claims

- **Marketing /New Business prefer fewer application questions**
- **Underwriter mainly interested in level of overall cover with their own company**
- **Applicants wish to avoid medical underwriting**
 - due to anti-selection?
 - due to wish to limit delays doing medical assessments?)
- **Less sharing of IME's/tests results during application stage** – perhaps due to use of bespoke electronic input of data and each insurer having individual questions
- **Applicants don't trust insurers and wish to spread their risk** (or they hear from others that this is one way to more easily obtain higher cover overall)
- **Broker/IFA may be informing their client to limit value of each insurers' application**
- Where high level of cover is pre-meditated, **applicants go to different IFA's** who are each none the wiser of anti-selection!
- **Cost of living crisis...**

Multi-insurer fraud themes



- **Build-up of cover** (over what period/ were there financial pressures at the time/ any prior Sx or evidence of planning to make an early claim/ different IFAs?)
- Is there a **credible need** for level/type of cover?
- Were the premiums **affordable**?
- **Inconsistencies** between information given to each insurer (is the applicant learning as they go along or have they learnt the loop-holes/ weakness in the process beforehand?)
- Any evidence of **criminal activity before** (this could be global, and they might appear 'clean' in the UK)?
- Could there be a '**fraudulent scheme**' **pre-inception** to bring about insured event? e.g. plan to kill wife

Why is there caution in data sharing?



Complaint to ICO & risk of fine



Civil damages claim
(compensation for financial loss & distress)



Social Media use by customer



Reputational damage



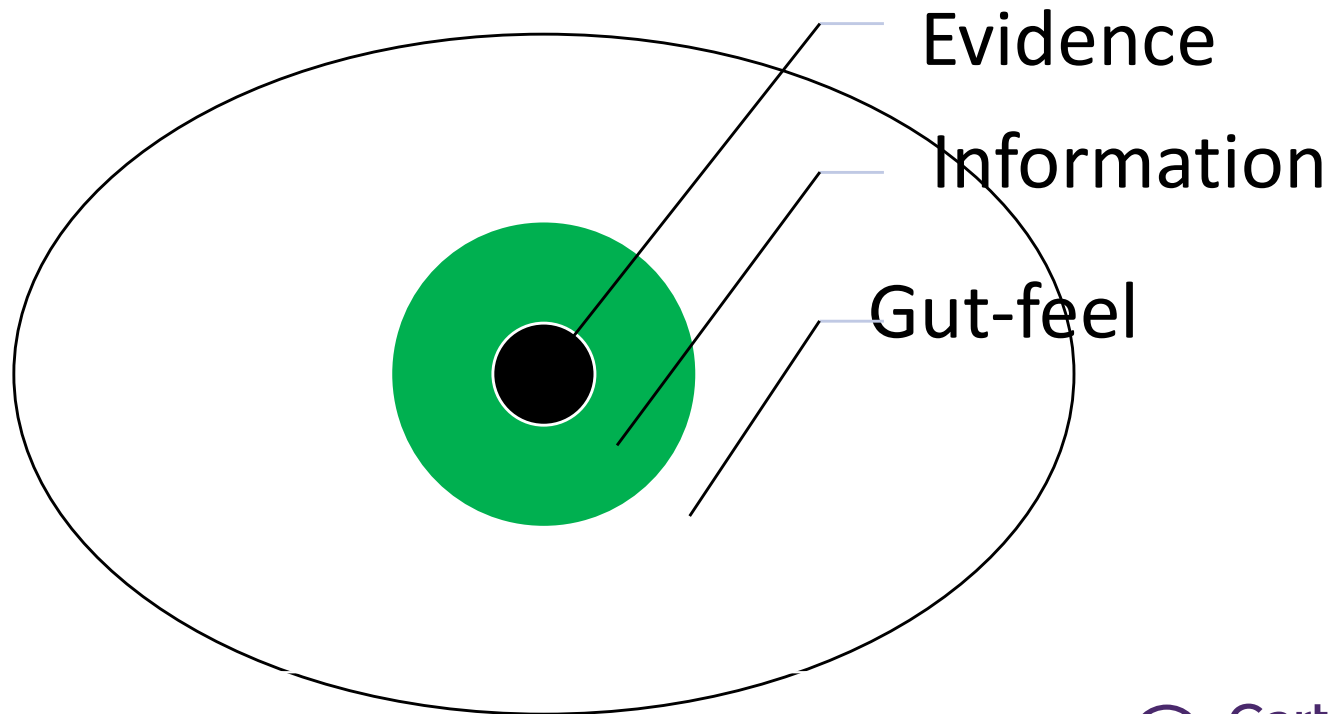
Loss of sales (or existing customers move)



Criticism from treating medical professionals
(who may only know part of the picture)



Collaboration is key to be able to
see the inconsistencies



Prevention & Detection of Crime

Remember to limit the data shared &
keep it relevant to the prevention/ detection objective

- IFIG search (try first half of postcode – to broaden scope)
- Did the other insurer(s) ask about existing cover/ other applications?
- Request their blank form first (to understand questions asked)
- Was their application 'clean'?
- Timeline (when applied/ incepted/ SA/ premium level)?
- Was the IFA different from X firm?
- Any phone calls? Were they testing/learning? Ensure call recordings are saved
- Any late premium payments?
- Similarly, ensure docs/data are preserved



Good practice for compliant data sharing



- Always consider relevancy/ proportionality of sharing request (i.e. sense-check internally)
- Fully document rationale for sharing, on your file
- At claim stage, ask whether there is any other insurance cover (x2)?
- Expressly refer in privacy notice to sharing with other insurers/reinsurers & databases to prevent & detect crime
- Follow industry approved steps

Industry Approved Steps

RAD form 1 (request)

RAD form 2 (response)

Sharing under **Schedule 1, Part 1 paragraph 2**
of the **Data Protection Act 2018**

This means it is exempt from disclosure if a Data Subject Access Request is made by person under Art. 15

OR

Insist on requester obtaining a **Court Order** for disclosure to them

IFB/CII Best Practice Guide dated 25 May 2018

<https://insurancefraudbureau.org/media/1185/schedule-2-dpa-2018-best-practice-guide-v-80.pdf>

ICO Data Sharing Code of Practice dated 17 December 2020

<https://ico.org.uk/media/for-organisations/data-sharing-a-code-of-practice-1-0.pdf> (esp p 77-81)



IFIG – quality data sharing

Insurance Fraud Investigators Group

- My training from the police in the early 2000's to be an IFIG “Single Point of Contact” (SPOC) was on the **National Intelligence 5x5x5 model**

Information evaluation process on the:

Source – *where is it from?*

Intelligence - *what is it?*

Handling – *who is allowed to see it?*

For example, how reliable is the source? Always, mostly, sometimes, unreliable, untested source (e.g. anonymous ‘tip-off’)

- IFB/CII – **S.P.A.R.C. methodology**

- Subject matter of data
- Proportionate request
- Articulate concerns clearly
- Relevancy to crime being investigated
- Crime



What framework are we working within?

Data Protection Act 2018 & the UK GDPR
NB an amending Bill 265 (No. 2) currently going through Parliament

Process personal data '**lawfully**'

by satisfying at least 1 of 6 from **Art. 6 UK GDPR**

6(1) (a) **consent**

6(1) (b) **performance of contract**

6(1) (f) **legitimate interests**

PLUS

where **health data/criminal convictions.....**

by satisfying 1 of 10 from **Art. 9**

9(2) (a) **explicit consent**

9(2) (f) **establishing, exercise or defence of legal claims**

9(2) (g) **substantial public interest**

Insurer

- Person **withdraws consent** (can't fairly assess claim without relevant data)
- Person asks for their data to be **erased** altogether (**Art. 17**) or use **restricted** (**Art.18**)
- But won't apply when e.g. needed for est'g/exercise/defence of legal claims

Reinsurer

- Doesn't have a direct contractual relationship with person and therefore no direct consent provided

Email header

*Communication under data controllers legitimate interests under Article 6(1) (f) GDPR and as a matter of substantial public interest under Section 10 & Schedule 1 Part 2 para 14 & 20 Data Protection Act 2018 and otherwise in accordance with Section 15 & Schedule 2 Part 1 para 2 Data Protection Act 2018 in that it is considered necessary for the **prevention and detection of crime**.*

We would, however, caution against making any presumption of any dishonesty on the part of any person or organisation named

Mr & Mrs

Possible solutions to excessive build-up of cover

RISK FACTORS

- Mr's email address only & Mr conducts all calls with Insurer



- Coercion during joint life application
- Rogue Trust signature witness (professional enabler?)

POSSIBLE SOLUTIONS?

- Obtain sufficient contact details for each applicant to help with 2-factor authentication
- Ask for signature and return of printed applic. Cross-check signatures or use 2-factor authentication with electronic process
- Is current GDPR call identity validation enough? Consider asking for unique question to help validate that the person is not being impersonated
- Consider introducing warning message known to IFA's & Insurers (bar equivalent of 'Ask for Angela' / in USA - ordering Angel Shot cocktail neat/ with ice/ with lime)
- Is desktop validation on trust signature witness practical at all (esp. if existing concerns flagged?)

Preparations - IFED/ Police



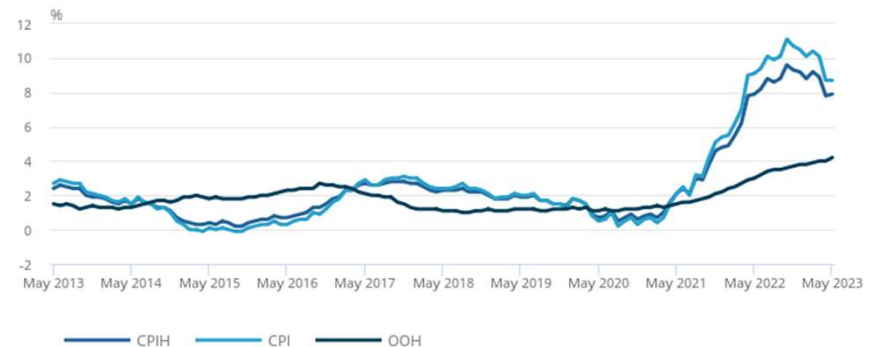
- Be aware that a police file may have wider information which is relevant to an insurer
- Third party documents could be destroyed within weeks of the end of an unlawful killing criminal trial (so document preservation request advisable)
- Sch 1, Pt 1 para. 2 & Sch 2, Pt 1(5) – legal advice/civil case
- Evidence is key e.g. Colombian doorstep shooting
- Any on-going risk of harm to others?
- Any other criminal activity? e.g. benefits fraud, tax evasion – this could be UK/ overseas
- To get case accepted be persuasive and patient

Preparations - FOS

- Rate of increase in binding awards – is this appropriate? Is there scope for mis-use?
N.B. Consumer Price Index (CPI) rises since 1/4/2019: £2023 £415k (£190k re pre 2019 acts/omissions)
- On case-by-case basis ask - is it the appropriate forum?
- **DISP 3.3.4A(5)** dismiss without considering merits
- **DISP 3.5.9R & 3.5.10G**
- Avoid 'cherry-picking'

Figure 1: Annual CPIH and CPI inflation rates little changed between April and May 2023

CPIH, OOH component and CPI annual inflation rates for the last 10 years, UK, May 2013 to May 2023



Source: Consumer price inflation from the Office for National Statistics

Preparations – Civil Court

- Early preservation of evidence
- Again consider gut-feel v. information v. evidence
- Be wary of ‘cherry-picking’ by Claimant
- How will Claimant/ evidence come across?
- Weight of evidence – when to pursue and when to bring to a conclusion through alternative methods (& how)



Summary of possible solutions to multi-insurer fraud

- Return the question in applic re overall existing cover (and current applications)
- Ask about existing cover at claims stage (more than once!)
- Refer in privacy notice to sharing with other insurers/reinsurers/databases - to prevent & detect crime
- Use databases such as IFIG
- Promote use of RAD form 1 (request) & form 2 (reply)
- Improve validation of Mr as well as Mrs to reduce coercion or lack of awareness of build up of cover
- Consider market use of an equivalent “Ask Angela” warning



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The role of The Insurance Fraud Enforcement Department (IFED) and how they work with the insurance industry

Tom Hill - Detective Chief Inspector and Head of Unit for IFED - The City of London Police

Health Claims Forum

12th September 2023

Detective Chief Inspector Tom Hill
Insurance Fraud Enforcement Department (IFED)



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Agenda

- Economic Crime and Fraud: The National Picture
- Unit Overview
- Case Study: R v Whilby
- Case Study: R v Goodwin
- Case Study: R v Owusu
- Q&A



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Fraud and Economic Crime Challenges



1 in 5

Businesses had been victims of fraud over last 3 years



1,125,168
offences

15% increase on 2022



41%

of all crime is fraud,
89% cyber enabled



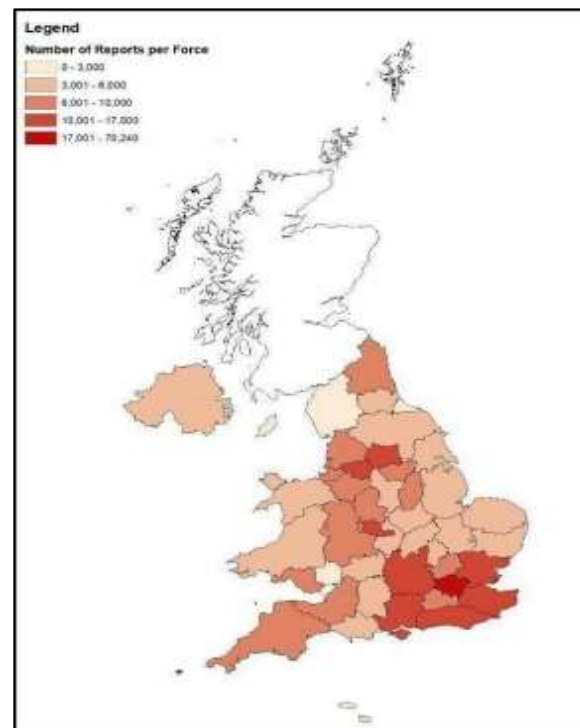
2%

Frauds referred to territorial police for investigation



> £6.8bn

annual cost to the UK economy



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National Fraud Strategy



Pursue fraudsters



Stop and Block



Empower the public



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What is the Insurance Fraud Enforcement Department?

- Founded in 2012
- National remit to tackle insurance fraud
- Funded by the Association of British Insurers (ABI)
- Current 3-year agreement ends in December 2023



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Unit Objectives

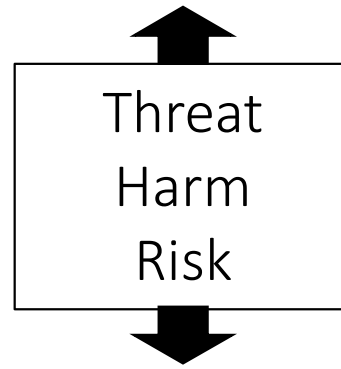
- To tackle serious, organised and opportunistic crime through detection, disruption and prevention
- To target criminal finances
- To tackle the perception that insurance fraud is low risk and acceptable
- To be a centre of excellence to improve the overall response to insurance fraud



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Partnership with Industry

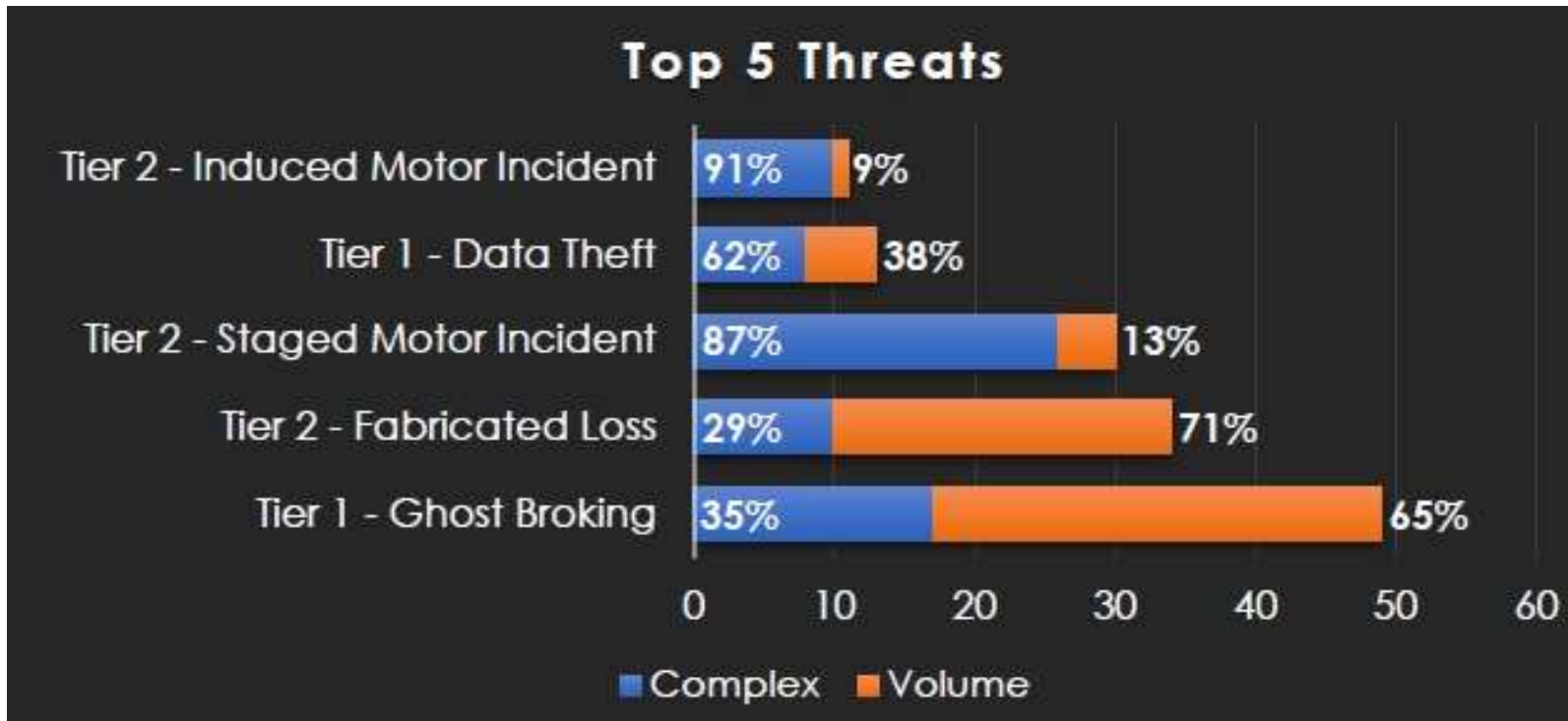
- Operational Independence
- Scoring Matrix
 - Priorities
 - Suspect
 - Victim
 - Value
 - Evidence
- 70% acceptance rate year in 2023



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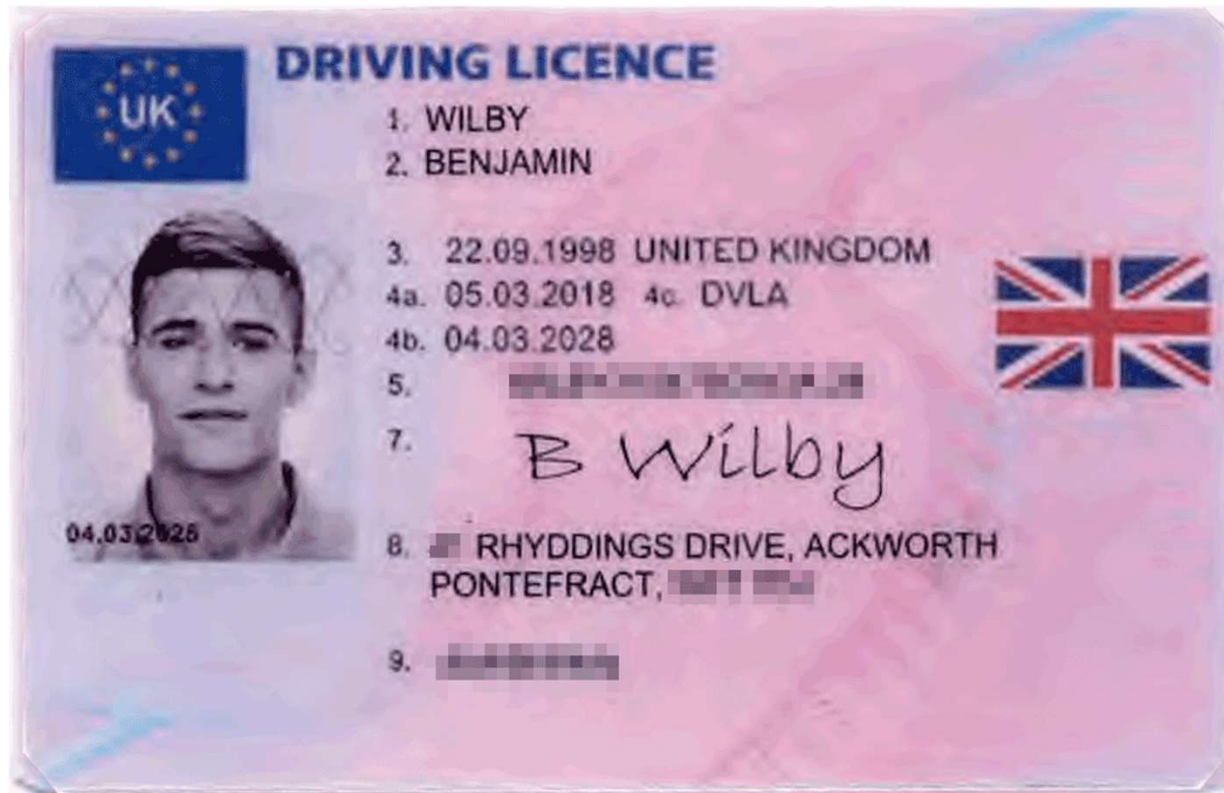


Threats based on live investigations





Case Study: Benjamin Whilby



Case Study: Benjamin Whilby



The outcome of this case shows that fraud will not be tolerated at any level.

Detective constable Surinder Ram

Protection Aug 9 2022

Man jailed for £24k bogus medical insurance claims



Pexels/Jimmy Chan

By Simoney Kyriakou

A man from Yorkshire has been jailed after attempting to defraud three



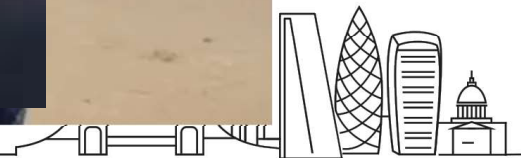
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Case Study: Gemma Goodwin



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Case Study: Gemma Goodwin

- Life insurance policy, including terminal illness benefit
- 3 years later – contact with insurer re. diagnosis with terminal cancer
- Forged medical documents
- Exploited her friends



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Case Study: Gemma Goodwin

DEACTIVATED

Gemma's treatment in America.



Walter Criswell is organising this fundraising appeal on behalf of gemma goodwin.

£2,033 raised

This fundraiser has been deactivated by the organiser.



Walter Criswell

£20

24 months ago



Walter Criswell

£5

21 months ago



Walter Criswell

£100

21 months ago



Walter Criswell

£50

21 months ago



Walter Criswell

£5

21 months ago

See all

Donate

Share

Organiser and beneficiary



Walter Criswell
Organizer
Dartford,
South East
England,
United
Kingdom



gemma
goodwin
Beneficiary

Contact



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**Maldstone and
Tunbridge Wells**



NHS Foundation Trust

18th May 2018

**Gemma Goodwin has stage 2 cancer of the left breast.
It has spread across to the left lung and is at stage 4.
Today we have given Gemma some results that unfortunately it has spread across to her cervix.
Gemma has been advised that her life expectancy is approximately 1 year to 2 years.
Treatment has not been offered to Gemma due to the quickness of it spreading to the lung and it
being so far on.**

Consultant Clinical Oncologist

WITNESS STATEMENT

Criminal Procedure Rules, r 27. 2; Criminal Justice Act 1967, s. 9; Magistrates' Courts Act 1980, s.5B

URN

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Statement of: Dr [REDACTED]

Age if under 18: Over 18

(if over 18 insert 'over 18')

Occupation: Consultant Oncologist

I did not write the letter which was forwarded to me by the police. I would not have phrased a letter in such a manner. It is also not written on our correct headed paper – letters from our department are written stating that is from the Kent Oncology Centre, with the address and telephone number, and also the patient's full demographics would be included in the letter (name, address, date of birth, Kent Oncology Centre number and NHS number).



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Case Study: Gemma Goodwin

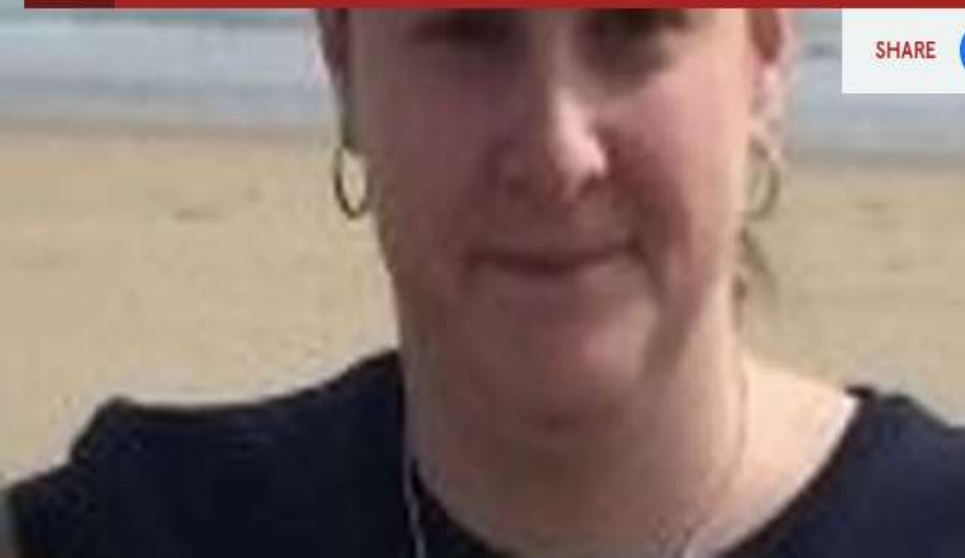
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"You richly deserve to go to prison immediately..." - Judge Philip Statman



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SHARE

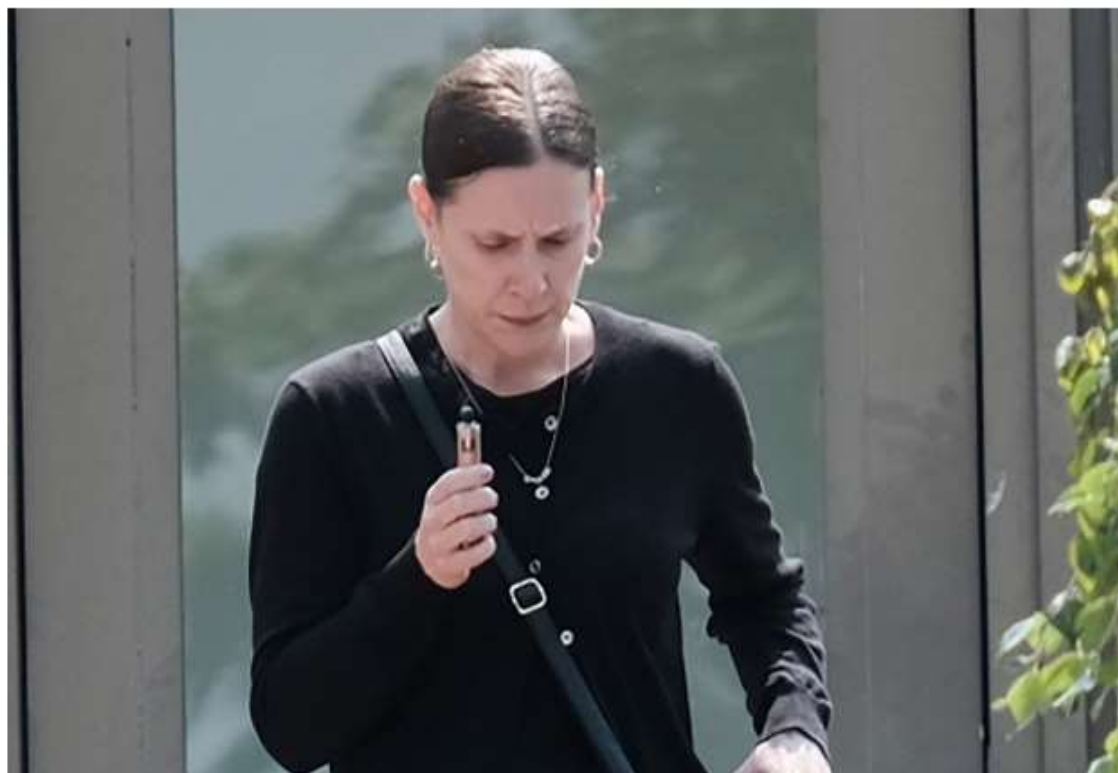


Gemma Goodwin, 38, shaved her hair off in cancer lie

NEWS POLITICS FOOTBALL CELEBS TV ROYALS MONEY

'Shameless' mum claimed she had terminal cancer and shaved off hair in £130,000 fraud

Gemma Goodwin, 38, told friends and family she had breast, cervical and lung cancer with only a year to live. She 'feared leaving her three children behind'

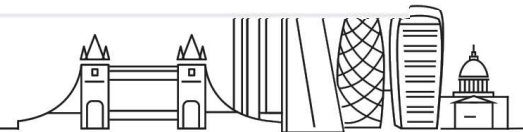


News > UK News

CANCER CHEAT Mum faked terminal cancer in £2,000 scam for bogus 'treatment' in America but splashed cash on HOLIDAY there instead

Case Study: Bernard OWUSU

- July 2021, Case referred to IFED
- Financial and DWP investigation
 - Company filings showing substantial income profit in previous tax years
- February 2022, Interview at Luton Police Station
 - Denied fraud



Case Study: Bernard OWUSU

- Guilty plea entered at Southwark CC for Fraud by false representation
- The judge described his fraud as:
 - *‘sophisticated, persistent, and serious. Tarnishing OWUSU’s previously good character’*
- 9-month custodial suspended sentence. Suspended for 12 months. 80 hours unpaid work and a rehabilitation order of 10 days. Ordered to pay compensation of £5000, in full within 12 months



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Health Claims Forum
Working together for success

Panel Discussion



Health Claims Forum
Working together for success

**Wrap Up & Close
Drinks Reception @
Slug & Lettuce
Over the road**

